

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Team # 1	CCRB Case #: 201409658	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/14/2014 1:30 PM	Location of Incident: Inside the 75th Precinct stationhouse	18 Mo. SOL 4/14/2016	Precinct: 75		
Date/Time CV Reported Fri, 10/24/2014 12:06 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 10/24/2014 12:06 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stefan Olynyk	23977	950979	075 PCT
2. POM Christophe Debernardo	05207	920187	075 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Krystal Murray	15129	950928	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Debernardo	Abuse: Det.Christopher Debernardo threatened § 87(2)(b) with the use of force.	A . Unsubstantiated
B . POM Christophe Debernardo	Discourtesy: Det. Christopher Debernardo spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Stefan Olynyk	Abuse: PO Olynyk refused to provide his name and shield numbers to § 87(2)(b)	C . Unsubstantiated

Case Summary

On October 14, 2014, at approximately 1:30 p.m., inside the 75th Precinct stationhouse § 87(2)(b) was placed under arrest by Det. Christopher Debernardo for violating an order of protection. While placing § 87(2)(b) under arrest Det. Debernardo said, allegedly grabbed her shirt collar and said, “I should fuck you up.” (**Allegation A**). Det. Debernardo then told § 87(2)(b) “I don’t give a fuck what you say.” (**Allegation B**). Det. Debernardo handcuffed § 87(2)(b) § 87(2)(b) was processed and put in a holding cell. PO Krystal Murray and PO Stefan Olynyk arrived at the stationhouse to transport § 87(2)(b) to the hospital so she could take prescription medication. While § 87(2)(b) walked to the ambulance, she requested both PO Murray and PO Olynyk’s names and shield numbers. PO Murray provided her name and shield number but PO Olynyk allegedly did not provide his name or shield number (**Allegation C**).

Mediation, Civil, and Criminal Histories

Due to § 87(2)(b)’s pending civil case, this case was unsuitable for mediation (encl. 10f). As of March 20, 2014, § 87(2)(b) has not filed a Notice of Claims with the New York City Comptroller’s Office (encl. 10g). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- § 87(2)(b) filed one previous CCRB complaint, § 87(2)(b).
- Det. Debernardo has been a member of service for 17 years and has no substantiated allegations against him (encl. 2a).
- PO Olynyk has been a member of service for three years and there are no substantiated allegations against him (encl. 2b).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g)

Allegation A-Abuse of Authority -Det. Christopher Debernardo threatened § 87(2)(b) with the force.

Allegation B-Discourtesy- Det. Debernardo spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that when she arrived at the 75th Precinct stationhouse she met with Det. Debernardo who placed her under arrest for § 87(2)(b). As § 87(2)(b) was preparing to call her mother Det. Debernardo allegedly grabbed her shirt collar and told her, “I should fuck you up. Do you think I care about arresting you? You are getting arrested. I don’t give fuck what you say” (encl. 5c-5d).

Det. Debernardo stated that he was alone when he escorted § 87(2)(b) to an interview room to sign her Miranda Rights paperwork. § 87(2)(b) refused and requested her attorney at which point Det. Debernardo placed § 87(2)(b) in handcuffs. Det. Debernardo denied ever grabbing § 87(2)(b) and saying to her, “I should fuck you up” or “I don’t give a fuck what you say.” (encl. 6g-6h).

§ 87(2)(g)
§ 87(2)(b). Therefore it is recommended that **Allegation A** and **Allegation B** be closed as **Unsubstantiated**.

Allegation C-Abuse of Authority-PO Olynyk refused to provide his name and shield numbers to § 87(2)(b)

It is undisputed that § 87(2)(b) requested both PO Olynyk and PO Murray’s names and shield numbers. § 87(2)(b) initially stated that while she was being placed into the ambulance she requested both PO Olynyk and PO Murray’s name and shield number and PO Murray told PO Olynyk that he did not have to provide his information. § 87(2)(b) later stated in a follow-up phone call on November 19, 2014, that PO Olynyk told PO Murray she did not have to provide her information but PO Murray did provide her name and shield number while PO Olynyk did not (encl. 5c-5g).

Both EMTs that responded to the 75th Precinct denied hearing any conversation between § 87(2)(b) and the officers that were present (encl. 5j-5k & 5n-5o).

PO Olynyk stated that he only interacted with § 87(2)(b) when he assisted PO Murray in placing § 87(2)(b) in leg shackles when they walked § 87(2)(b) from inside the stationhouse to outside the stationhouse to the ambulance that was waiting to transport her to the hospital. While they walked outside, § 87(2)(b) asked for both PO Olynyk and PO Murray’s names and shield numbers and that both officers verbally provided it. PO Olynyk denied ever entering into the ambulance or interacting with § 87(2)(b) any other time on the date of the incident.

PO Murray did not hear § 87(2)(b) request PO Olynyk’s name or shield number. PO Murray stated that once inside the ambulance § 87(2)(b) requested her name and shield number and that she verbally provided it (encl. 7d- 7e).

§ 87(2)(g)
§ 87(2)(b). Therefore, it is recommended **Allegation C** be closed as **Unsubstantiated**.

Team: ____One____

Investigator: _____
Signature Print Date

Supervisor: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date